

Terms of Service

Last updated: November 3, 2025

These Terms of Service (these “**Terms**” or this “**Agreement**”) govern your access to and use of the products, services, and properties operated by Swaps XYZ Ltd, a British Virgin Islands business company organized under the laws of the British Virgin Islands (“**Company**”, “**we**”, “**us**”, or “**our**”), including: (a) our publicly available application programming interfaces, software development kits, developer tools, documentation, sandbox environments, and related developer products (collectively, the “**APIs**”); (b) our web application(s), site(s), and interfaces used to discover prices, route, and submit transactions across supported blockchain networks (collectively, the “**App**” or the “**UI**”); and (c) certain smart contracts that we develop and deploy on supported blockchain networks (the “**Swaps Smart Contracts**”; together with the APIs and the App, collectively, the “**Services**”). By accessing or using the Services, you agree to be bound by this Agreement. If you do not agree, you must not use the Services.

ARBITRATION NOTICE AND CLASS ACTION WAIVER: EXCEPT FOR CERTAIN TYPES OF DISPUTES DESCRIBED IN SECTION 17, YOU AGREE THAT DISPUTES BETWEEN YOU AND US WILL BE RESOLVED BY BINDING INDIVIDUAL ARBITRATION, YOU WAIVE YOUR RIGHT TO JURY TRIAL, AND YOU WAIVE YOUR RIGHT TO PARTICIPATE IN A CLASS ACTION LAWSUIT, CLASS ARBITRATION, OR ANY OTHER REPRESENTATIVE PROCEEDING. YOU MAY OPT OUT OF ARBITRATION WITHIN THIRTY (30) DAYS AS DESCRIBED IN SECTION 17.

By accepting these Terms, you also agree to the mandatory arbitration provision and class action waiver in Section 17.

1. Eligibility and Authority

You must be at least 18 years old (or the age of majority where you reside, if higher) and able to form a binding contract. If you accept these Terms on behalf of a company or other legal entity, you represent that you have authority to bind that entity, and “you” will refer to that entity. You represent and warrant that (a) you are not, and are not owned or controlled by (directly or indirectly), any person or entity that is listed on, or otherwise subject to, any sanctions or restricted-party list administered or enforced by the British Virgin Islands, the United States, the United Kingdom, the European Union, the United Nations, or any other applicable sanctions authority; (b) you are not a citizen or resident of, located in, or organized in any jurisdiction that is embargoed or comprehensively sanctioned by any of the foregoing authorities; and (c) your use of the Services is lawful and does not violate any applicable law, rule, or regulation. In addition, you agree that you will at all times comply with all laws, rules, and regulations applicable to you and your access and use of the Services, including, without limitation, anti-money laundering, counter-terrorist financing, sanctions, export control, consumer protection, tax, and securities laws.

You may not use, export, re-export, or transfer the Services except as authorized by the laws of the British Virgin Islands and all other applicable laws, including those of the United States, the United Kingdom, the European Union, and any jurisdiction in which the Services are accessed. You represent that you are not located in, under the control of, or a national or resident of any country or region subject to comprehensive sanctions administered or enforced by the British Virgin Islands, the United States, the United Kingdom, the European Union, or the United Nations, and you are not on any government list of prohibited or restricted parties.

We may suspend, restrict, or terminate access to all or any portion of the Services, including blocking transactions, in our discretion, including for suspected violations of this Agreement or applicable law, or where required by subpoena, court order, or binding order of a governmental authority.

2. Modifications to These Terms

We may update these Terms from time to time in our discretion. If we make changes, we will provide notice by updating the “Last updated” date. Unless otherwise stated, changes are effective immediately, and your continued use of the Services confirms your acceptance. If you do not agree to the amended Terms, you must stop using the Services.

3. Services

We provide software Services, including APIs and an App user interface, that enable you to discover prices and route, sign, and submit transactions to supported public blockchain networks via third-party wallet software and underlying smart contract protocols (collectively, “**Protocols**”). Protocols include both (i) the Swaps Smart Contracts and (ii) smart contracts and other software authored or operated by third parties. The Swaps Smart Contracts may be open-source and made available under applicable open-source licenses, and certain Swaps Smart Contracts may be upgradeable or subject to governance or administrative controls described in the relevant documentation. We do not operate a virtual currency or derivatives exchange platform, do not offer trade execution or clearing services, and do not act as a broker, payment processor, financial institution, creditor, investment adviser, or commodity trading adviser.

You may be required to connect a compatible third-party digital wallet to use portions of the App and to create an account to use portions of the APIs (each, an “**Account**”). All transactions are effected by your wallet software and the applicable network(s). You are solely responsible for securing your wallet, maintaining accurate Account information, and promptly notifying us of any suspected breach of your Account or API credentials. If you are a developer using the APIs, you are responsible for the acts and omissions of your end users and for implementing appropriate authentication, rate limiting, security, and compliance measures.

We do not hold, have access to, or retain private keys. You retain full custody and control of your digital assets at all times and bear all risk of loss. We do not and cannot control the operation of any blockchain, Protocol, or mempool, or the availability, security, or functionality of third-party wallets, bridges, or other third-party services. To the fullest extent permitted by law, the Services (including the Swaps Smart Contracts and any third-party Protocols) are provided on an “as is” and “as available” basis, and we cannot reverse, block, or recover transactions you initiate.

4. License and Usage

Subject to your compliance with these Terms, we grant you a limited, revocable, non-exclusive, non-transferable, non-sublicensable license to access and use the APIs and related documentation solely to build applications that interact with supported Protocols and networks through our Services. You must not: (a) use the APIs in a manner that degrades or harms the Services or Protocols; (b) circumvent or exceed documented rate limits; (c) scrape, index, or bulk export data except as permitted by documentation; (d) reverse engineer, decompile, or derive source code except to the extent permitted by applicable open-source licenses; (e) cache or store data in violation of our data retention policies; (f) use the APIs to develop or operate a substantially similar aggregation or routing API service that is offered commercially to third parties, without our prior written consent; or (g) remove, obscure, or alter any proprietary notices.

Except for open-source software components governed by their respective licenses, the Services and all content, interfaces, designs, and software provided by us are owned by or licensed to us and are protected by intellectual property laws. We grant you no rights other than those expressly stated in this Agreement. Certain Protocols and components, including some Swaps Smart Contracts, may be made available under open-source licenses and/or posted in public repositories. Your use of such components is subject to the applicable open-source license(s), which may grant rights different from or additional to those contained in these Terms. Nothing in these Terms limits your rights under any applicable open-source license.

We may update, deprecate, or discontinue any API, endpoint, parameter, or feature with or without notice. You are responsible for implementing updates and changes to maintain compatibility.

5. User Content and Feedback

If you upload, submit, store, or otherwise make available text, data, code samples, documentation, or other content through the Services (“**User Content**”), you retain ownership of your User Content, but you grant us a worldwide, non-exclusive, royalty-free, sublicensable, and transferable license to use, host, reproduce, modify, create derivative works, distribute,

display, and perform your User Content for purposes of operating, improving, securing, and promoting the Services. You also grant other users a limited license to access and use your publicly shared User Content through the Services. You represent and warrant you have all rights necessary to grant these licenses.

If you provide suggestions, comments, or other feedback ("**Feedback**"), we may use, disclose, and otherwise exploit the Feedback without restriction or obligation to you.

6. Changes; Suspension; Termination

We may modify, suspend, or discontinue any part of the Services at any time, with or without notice, for any reason, including security incidents, maintenance, or changes in Protocols or third-party dependencies. We are not liable for any losses resulting from any modification, suspension, or termination. All of these Terms will survive any termination of your access to the Services, regardless of the reasons for its expiration or termination, in addition to any other provision which by law or by its nature should survive.

7. Fees

- **Network or protocol fees.** Transactions on supported networks may require payment of network fees (e.g., "gas") or other protocol charges ("**Network Fees**") paid to blockchain networks or Protocols to process transactions. Under the Swaps Smart Contracts, Network Fees may be paid in the native gas token required by the underlying network, or another supported token. You are solely responsible for all Network Fees.
- **Service fees.** We may charge fees for certain transactions or features, including but not limited to limit orders, swaps on specified networks, advanced routing, and protocol execution services that allow transactions without holding native gas tokens ("**Aggregator Services**"), and similar features. Where applicable, such fees will be disclosed in the transaction details presented to you before you authorize a transaction, or in API documentation for developers.
- **Changes.** We may add, modify, or discontinue fees in our discretion. Any changes will be reflected in the UI or API response prior to transaction authorization or documented in the API documentation.

You are solely responsible for all taxes arising from your use of the Services and your transactions.

8. Third-Party Services and Data

The Services may rely on or link to third-party services, smart contracts, wallets, bridges, RPC providers, market makers, data sources, or other services not operated by us (collectively,

“Third-Party Services”). We do not control and are not responsible for Third-Party Services, including the accuracy, timeliness, completeness, reliability, availability, or security of their content or functionality. Your use of Third-Party Services is at your own risk and may be subject to separate terms and policies.

9. Risk Disclosure

You understand and agree that:

- Digital assets and Protocols are highly volatile and subject to market, technological, regulatory, and cybersecurity risks. Prices and costs (including Network Fees) can change rapidly and unpredictably.
- Protocols and networks are operated by third parties or communities. We do not control, and are not responsible for, their operation, security, forks, upgrades, reorgs, censorship, or downtime.
- Transactions are generally irreversible and may fail, revert, be delayed, or execute at a different price than expected due to network conditions, slippage, MEV, or other factors.
- Anyone can create tokens; we make no representation about any token’s attributes, legal status, or suitability. You must conduct your own research and ensure you are legally permitted to transact in any token.

You assume all risks associated with your use of the Services and your interactions with Protocols and digital assets.

10. Acceptable Use

You agree not to, and not to enable or encourage any third party to:

- Violate any applicable law (including AML/CFT, sanctions, export, and securities laws).
- Interfere with, disrupt, or degrade the Services; introduce malware; bypass or circumvent security or access controls; access non-public areas; or scrape or harvest content or data except as expressly permitted by API documentation.
- Engage in market manipulation or misconduct (including front-running, wash trading, spoofing, layering, pump-and-dump schemes).
- Use any VPN, proxy, Tor routing, or similar technology to obscure your location for the purpose of accessing the Services from a jurisdiction where the Services are restricted or prohibited.

- Use the Services to conduct regulated financial activities that require registration or licensing (including issuing or transacting in securities or derivatives) unless you have all necessary approvals and we have provided prior written consent.
- Use the Services to conduct or facilitate fundraising activities that constitute or may constitute an offering of securities or similar regulated instruments.
- Engage in toxic or abusive order flow practices that systematically exploit stale quotes, latency, or information asymmetries against liquidity providers.
- Use the APIs to develop or operate a substantially similar aggregation or routing API service that is offered commercially to third parties, without our prior written consent.

We may investigate and refer suspected violations to law enforcement and regulators and disclose information as required by law or to protect rights, safety, and property.

11. Privacy

Your use of the Services is governed by the MoonPay Privacy Policy, available at https://www.moonpay.com/legal/privacy_policy. By using the Services, you consent to our collection and use of information as described in the Privacy Policy.

12. Electronic Notices

You consent to receive communications from us electronically, including by email, in-Service messages, or postings on the Services. Such communications satisfy any legal requirement that communications be in writing. You are responsible for maintaining current contact information. You may request additional electronic copies of notices by contacting us at support@moonpay.com.

13. Warranty Disclaimers

To the maximum extent permitted by law, the Services (and any content or functionality) are provided “AS IS” and “AS AVAILABLE,” without warranties of any kind, whether express, implied, statutory, or otherwise, including implied warranties of merchantability, fitness for a particular purpose, title, quiet enjoyment, accuracy, and non-infringement. Without limiting the foregoing, we make no representation or warranty regarding the functionality, security, availability, or suitability of any Protocols (including the Swaps Smart Contracts) or any third-party blockchain network. We do not warrant that the Services will be uninterrupted, secure, or error-free, that defects will be corrected, or that data will be accurate, current, or complete.

14. Indemnification

To the fullest extent permitted by law, you will indemnify, defend, and hold harmless Company and its affiliates, and their respective directors, officers, employees, contractors, and agents, from and against any claims, losses, liabilities, damages, costs, and expenses (including reasonable attorneys' fees) arising out of or relating to: (a) your access to or use of the Services (including your interaction with any Protocols or Swaps Smart Contracts); (b) your violation of these Terms or applicable law; (c) your User Content; (d) your applications, products, or services that use the APIs; or (e) any dispute between you and any third party. We may control the defense and settlement of any claim subject to indemnification, and you will cooperate with us.

15. Limitation of Liability

To the fullest extent permitted by law, in no event will we be liable for any indirect, incidental, special, punitive, exemplary, or consequential damages, or for any loss of profits, revenues, goodwill, data, or other intangible losses, arising out of or relating to your use of or inability to use the Services, whether based in contract, tort, negligence, strict liability, or otherwise, even if we have been advised of the possibility of such damages.

Our aggregate liability arising out of or relating to these Terms or the Services will not exceed the greater of: (a) one hundred U.S. dollars (US\$100); or (b) the amount of fees retained by us from you in connection with the transaction or incident giving rise to the claim during the twelve (12) months immediately preceding the event giving rise to liability. The foregoing cap does not limit your payment obligations or indemnity obligations.

Some jurisdictions do not allow certain limitations of liability; in such jurisdictions, our liability will be limited to the maximum extent permitted by law.

16. Release

To the fullest extent permitted by applicable law, in consideration for being allowed to use the Services, you hereby release and forever discharge the Company and its affiliates, and their respective shareholders, members, directors, officers, employees, attorneys, agents, representatives, suppliers, licensors, and contractors (collectively, the ***"Released Parties"***) from, and you hereby waive, each and every past, present, and future dispute, claim, controversy, demand, right, obligation, liability, action, and cause of action of every kind and nature (including for personal injuries, death, and property damage) that arises out of or relates to the Services, including any interactions with, or act or omission of, other users, any Third-Party Services, any Protocols or Swaps Smart Contracts, or any third-party blockchain networks.

California Waiver. If you are a California resident, you waive California Civil Code § 1542 (and any substantially similar law), which states: **"A general release does not extend to claims that the creditor or releasing party does not know or suspect to exist in his or her favor at the time of executing the release and that, if known by him or her, would have materially affected his or her settlement with the debtor or released party."**

17. Dispute Resolution and Arbitration

PLEASE READ THIS SECTION CAREFULLY. IT REQUIRES YOU TO ARBITRATE CERTAIN DISPUTES AND LIMITS THE MANNER IN WHICH YOU CAN SEEK RELIEF.

- **Informal resolution.** Before initiating arbitration, the initiating party must send a written notice of the dispute to the other party at support@moonpay.com] and attempt to resolve it informally within 30 days.
- **Arbitration agreement.** Except as expressly provided below, any dispute, claim, or controversy arising out of or relating to these Terms or the Services (including any question regarding their existence, validity, or termination) will be finally resolved by binding, individual arbitration administered by the BVI International Arbitration Centre ("**BVI IAC**") under the BVI IAC Arbitration Rules, which are incorporated by reference. The arbitration agreement, including its interpretation and enforcement, is governed by the Arbitration Act, 2013 of the British Virgin Islands.
- **Seat, venue, governing law, and language.** The seat and legal place of arbitration will be Road Town, Tortola, British Virgin Islands. The arbitration will be conducted in English. Unless you and we agree otherwise, if you are a consumer, any hearings may be conducted by video or telephone. The arbitrator will have exclusive authority to determine issues of arbitrability, procedure, jurisdiction, and remedies. The substantive laws of the British Virgin Islands will govern the merits of any dispute.
- **Carve-Outs.** The following disputes are not subject to arbitration: (a) either party may seek interim or injunctive relief, including for intellectual property infringement or misuse of confidential information, in the courts of the British Virgin Islands; and (b) if you are a natural person, you may bring an individual claim in a small claims court of competent jurisdiction.
- **Class action waiver.** YOU AND WE AGREE THAT EACH MAY BRING CLAIMS AGAINST THE OTHER ONLY IN AN INDIVIDUAL CAPACITY, AND NOT AS A PLAINTIFF OR CLASS MEMBER IN ANY PURPORTED CLASS, COLLECTIVE, CONSOLIDATED, OR REPRESENTATIVE PROCEEDING. THE ARBITRATOR MAY AWARD RELIEF ONLY IN FAVOR OF THE INDIVIDUAL PARTY SEEKING RELIEF.
- **Confidentiality.** The parties and the arbitrator will maintain the confidentiality of the arbitration to the extent permitted by law and the applicable arbitration rules.
- **Fees.** Filing and administrative fees will be allocated as provided in the applicable BVI IAC rules. Each party will bear its own attorneys' fees and costs unless the arbitrator awards fees under applicable law.

- **Opt-out.** You may opt out of this arbitration agreement within 30 days of first accepting these Terms by emailing support@moonpay.com with your name, account email or wallet address, and a clear statement of your intent to opt out. If you opt out, you agree to resolve disputes exclusively in the courts specified in Section 18.
- **Mass filings.** If 100 or more substantially similar arbitration demands are filed by or with the assistance of the same law firm or organization, the parties agree to cooperate in good faith with the BVI IAC to implement appropriate protocols (including batching and bellwether proceedings) to minimize costs and promote efficient resolution.

18. Governing Law

This Agreement and any dispute not subject to arbitration will be governed by and construed in accordance with the laws of the British Virgin Islands, without regard to conflict of laws rules that would cause the application of the laws of any other jurisdiction. The courts of the Eastern Caribbean Supreme Court sitting in the High Court of Justice of the Virgin Islands (British) will have exclusive jurisdiction over any dispute not subject to arbitration, and the parties consent to personal jurisdiction and venue in those courts.

19. Consumer Notices

In accordance with California Civil Code § 1789.3, you may contact the Complaint Assistance Unit of the Division of Consumer Services of the California Department of Consumer Affairs in writing at 1625 North Market Blvd., Suite N-112, Sacramento, CA 95834, or by telephone at (800) 952-5210.

20. Miscellaneous

This Agreement is the entire agreement between you and us regarding the Services and supersedes any prior agreements regarding the Services. We may assign this Agreement, in whole or in part, without notice. You may not assign or transfer this Agreement without our prior written consent. If any provision is held invalid or unenforceable, that provision will be enforced to the maximum extent permissible and the remaining provisions will remain in full force and effect. No waiver is effective unless in writing and signed by an authorized representative of the waiving party. There are no third-party beneficiaries to this Agreement. Legal notice and questions about these Terms may be sent to support@moonpay.com.